

SUPREME COURT OF THE STATE OF NEW YORK
COUNTY OF KINGS

-----X **SUMMONS**
SERGE JOLIVERT,

Plaintiff,

Plaintiff designates Kings
County as the place of trial.

- against -

THE CITY OF NEW YORK, POLICE OFFICER TERIQ
GRANT, POLICE OFFICER RYAN OLSEN,
Defendants.

The basis of venue is:
The county in which the action
arose per CPLR 504(3)

The cause of action arose in
Kings County and is against
the City of New York

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TO THE ABOVE NAMED DEFENDANTS:

YOU ARE HEREBY SUMMONED to answer the complaint in this action, and to serve a copy of your answer, or, if the complaint is not served with this summons, to serve a notice of appearance on the Plaintiff's attorney(s) within twenty days after the service of this summons, exclusive of the day of service, where service is made by delivery upon you personally within the state, or, within 30 days after completion of service where service is made in any other manner.

IN CASE OF YOUR FAILURE TO APPEAR OR ANSWER, judgment will be taken against you by default for the relief demanded in the complaint.

Dated: New York, NY
May 8, 2019

DEFENDANTS' ADDRESS:

THE CITY OF NEW YORK
Division of Law, Rm 1225 South
1 Centre Street
New York, NY 10007

POLICE OFFICER TERIQ GRANT
75th PRECINCT
1000 Sutter Ave
Brooklyn, NY 11208

POLICE OFFICER RYAN OLSEN
75th PRECINCT
1000 Sutter Ave
Brooklyn, NY 11208

PLAINTIFF'S ATTORNEY:



Masai I. Lord, Esq.
Attorney for Plaintiff
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718-701-1002

SUPREME COURT OF THE STATE OF NEW YORK
COUNTY OF KINGS

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SERGE JOLIVERT,
Plaintiff,

Index No.:

- against -

VERIFIED COMPLAINT

THE CITY OF NEW YORK, POLICE OFFICER TERIQ
GRANT, POLICE OFFICER RYAN OLSEN
Defendants,

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Plaintiff, SERGE JOLIVERT, by his attorneys. LORD & SCHEWEL PLLC, alleges upon knowledge as to himself and his own actions, and upon information and belief as to all other matters, as follows:

PRELIMINARY STATEMENT

1. Plaintiff SERGE JOLIVERT brings this action for compensatory damages, punitive damages, and attorney’s fees pursuant to 42 U.S.C. § 1983 and 42 U.S.C. § 1988, and all attendant New York state common law and statutes, for violations of his civil rights, as said rights are secured by said statutes and the Constitutions of the State of New York and the United States.
2. That at all times hereinafter mentioned, the DEFENDANT THE CITY OF NEW YORK was a Municipal corporation duly existing under and by virtue of the laws of the State of New York and doing business in the State of New York.
3. That at all times hereinafter mentioned, the DEFENDANTS TERIQ GRANT and RYAN OLSEN were employees of the New York City Police Department, acting in their capacity as a police officers, and under color of law.
4. That all acts and incidents complained of herein occurred in Kings County, City, and State of New York.
5. That within 90 days after the state law claim of Malicious Prosecution accrued, Plaintiff served a Notice of Claim, in writing, sworn by the claimant, containing the name and post office address of the Plaintiff and Plaintiff’s attorney, the nature of the claim, the time when, the place where and the manner by which the claim arose, the items of damage and the injuries claimed to have been sustained, to be served upon the DEFENDANTS by delivering a copy thereof to the person designated by law as a person to whom such claims may be served.
6. That Plaintiff appeared for a hearing pursuant to §50-H of the General Municipal

Law on or about January 7, 2019.

7. That the DEFENDANTS have not adjusted, settled or paid the same.

8. That this claim has been commenced and this action has been started within one year and ninety days after the accrual of the state law violation upon which the New York state law claims are based.

9. That all conditions and requirements precedent to the commencement of this action have been complied with.

10. Pursuant to CPLR Section 1602(2)(iv), DEFENDANTS are jointly and severally liable for all of Plaintiff's damages, including but not limited to Plaintiff's non-economic loss, irrespective of the provisions of CPLR Section 1601, by reason of the fact that DEFENDANTS owed the Plaintiff a non-delegable duty of care.

11. Pursuant to CPLR Section 1602(7), DEFENDANTS are jointly and severally liable for all of Plaintiff's damages, including but not limited to Plaintiff's non-economic loss, irrespective of the provisions of CPLR Section 1601, by reason of the fact that DEFENDANTS acted with reckless disregard of the safety of others.

12. Pursuant to CPLR Section 1602(2)(iv), DEFENDANTS are jointly and severally liable for all of Plaintiff's damages, including but not limited to Plaintiff's non-economic loss, irrespective of the provisions of CPLR Section 1601, by reason of the fact that DEFENDANTS are vicariously liable for the negligent acts and omissions of others who caused or contributed to the Plaintiff's damages.

13. That by reason of the foregoing, this Plaintiff has been damaged in an amount which exceeds the monetary jurisdictional limits of any and all lower Courts which would otherwise have jurisdiction herein, in an amount to be determined upon the trial of this action.

STATEMENT OF FACTS

14. On or about April 26, 2018 at about 4:30 pm, Plaintiff Serge Jolivert drove a motorcycle into Pitkin Boulevard and parked the motorcycle at a gas pump.

15. DEFENDANTS OLSEN AND GRANT were already present in the gas station and were parked on the opposite side of the gas station when Mr. Jolivert entered. From the location of the DEFENDANTS, it would not be possible for them to see whether or not there was a license plate on the motorcycle driven by Mr. Jolivert.

16. Mr. Jolivert was racially profiled by DEFENDANTS. When they saw him park

and his car and enter into the convenience store they followed him inside the convenience store because of his race.

17. While inside the store, DEFENDANTS attempted to confront Mr. Jolivert while he was buying something to drink.

18. Mr. Jolivert did not wish a confrontation with the DEFENDANTS and left the convenience store and returned to his bike.

19. When Mr. Jolivert went on top of his bike, DEFENDANT OLSEN ran up to him and, using excessive force, pushed him to the ground. The bike fell on top of Mr. Jolivert causing injury. While he was on the ground he was punched by DEFENDANT OLSEN. At no point did Mr. Jolivert resist or stiffen his body.

20. Mr. Jolivert was unlawfully arrested and charged with PL §§§§§ 265.02(1), 265.03(3), 205.30, 265.01(1), 265.01-b(1) and VTL §§§§§§ 511(2)(A)(IV), 511(1)(A), 509(1), 410 (1)(A), 401 (1)(A), 319(1).

21. Plaintiff was arraigned on April 27, 2018 and bail was set at \$20,000 bond over \$5,000 cash.

22. Plaintiff was incarcerated for three days before he was able to produce enough money to afford bail.

23. None of the aforementioned acts were protected by legal privilege, nor were such acts legally justified. Said occurrence and the injuries and damages sustained by claimant were due solely to the negligence, carelessness, recklessness and willful misconduct of the CITY OF NEW YORK, its agents, servants and/or employees.

24. These charges against Plaintiff was based entirely on the false allegations and fabrications by DEFENDANTS GRANT AND OLSEN.

25. All criminal charges against Plaintiff relating to this arrest were dismissed on or about October 26, 2018.

26. Plaintiff was illegally was stopped, arrested and imprisoned by agents and/or employees of the City of New York, including, but not limited to, upon information and belief, agents employed by the New York City Police Department.

27. Plaintiff was then maliciously prosecuted by and at the direction of the said individuals.

28. None of the aforementioned acts are or were protected by legal privilege, nor were

such acts legally justified.

29. Said occurrence and the injuries and damages sustained by claimants were due solely to the negligence, carelessness, recklessness and willful misconduct of the CITY OF NEW YORK, its agents, servants and/or employees.

30. As a result of the DEFENDANTS' conduct, Plaintiff has been caused to suffer, *inter alia*, severe anxiety, humiliation, and embarrassment, damage to personal reputation, apprehension, fear and distrust of the police, emotional and psychological trauma, loss of income, and violation of rights under the U.S. and New York Constitutions, and applicable statutory and case law.

**FIRST CAUSE OF ACTION:
FALSE IMPRISONMENT UNDER NEW YORK STATE LAW**

31. Plaintiff repeats, reiterates, and re-alleges each and every allegation contained in the above paragraphs with the same force and effect as if fully set forth herein.

32. That on April 26, 2018, and at all times hereinafter mentioned and upon information and belief, DEFENDANTS, without justification and without probable cause, imprisoned the Plaintiff.

33. That the DEFENDANTS' acting under the color of the law, intentionally confined the Plaintiff against his will and said confinement was not privileged.

34. As a result of the above constitutionally impermissible conduct, Plaintiff was caused to suffer psychological and emotional injuries, violation of their civil rights, emotional distress, anguish, anxiety, fear, humiliation, loss of freedom, and damage to their reputation and their standing within their community.

35. As a result of DEFENDANTS' impermissible conduct, Plaintiff demand judgment against DEFENDANTS in a sum of money to be determined at trial.

**SECOND CAUSE OF ACTION:
FALSE ARREST UNDER 42 U.S.C 1983**

36. Plaintiff repeat, reiterate, and re-allege each and every allegation contained in the above paragraphs with the same force and effect as if fully set forth herein.

37. Plaintiff was arrested in the absence of probable cause, at the direction of, or under practices, policies or customs promulgated by the NEW YORK POLICE DEPARTMENT and CITY OF NEW YORK.

38. As a result of the aforesaid conduct by DEFENDANTS, Plaintiff was subjected to illegal, improper and false arrest by the DEFENDANTS and taken into custody and caused to be falsely imprisoned, detained and confined without any probable cause, privilege or consent.

39. As a result of the above constitutionally impermissible conduct, Plaintiff was caused to suffer psychological and emotional injuries, violation of their civil rights, emotional distress, anguish, anxiety, fear, humiliation, loss of freedom, and damage to their reputation and their standing within their community.

40. As a result of DEFENDANTS' impermissible conduct, Plaintiff demand judgment against DEFENDANTS in a sum of money to be determined at trial.

**THIRD CAUSE OF ACTION:
MALICIOUS PROSECUTION UNDER STATE AND FEDERAL LAW**

41. Plaintiff repeats, reiterates, and re-alleges each and every allegation contained in the above paragraphs with the same force and effect as if fully set forth herein.

42. At the aforementioned times and locations, was detained and held under the imprisonment and control of the DEFENDANTS and other unidentified officers of the NYPD present on the scene without probable cause.

43. DEFENDANTS commenced the criminal action against Plaintiff in the absence of any probable cause that a crime had been committed.

44. DEFENDANTS commenced this criminal action out of malice.

45. The criminal action against Plaintiff has terminated in his favor.

46. That at all times hereinafter mentioned, said arrest, confinement and restraint of liberty was not otherwise privileged.

47. That Plaintiff was conscious of the confinement.

48. That as a direct, sole and proximate result of the false arrest, imprisonment, and malicious prosecution, Plaintiff was caused to and did sustain humiliation and embarrassment, emotional and mental distress, moral and mental degradation, indignity and disgrace, injury to personal reputation, inconvenience, and the disturbance and disruption of life.

49. The acts and conduct of the DEFENDANTS were the direct and proximate cause of injury and damage to the Plaintiff and violated his statutory and common law rights as guaranteed by the law of the Constitutions of the State of New York and of the United States.

50. As a result of the above constitutionally impermissible conduct, Plaintiff was caused to suffer psychological and emotional injuries, violation of their civil rights, emotional

distress, anguish, anxiety, fear, humiliation, loss of freedom, and damage to their reputation and his standing within their community.

51. As a result of DEFENDANTS' impermissible conduct, Plaintiff demand judgment against DEFENDANTS in a sum of money to be determined at trial.

**FOURTH CAUSE OF ACTION:
NEGLIGENT HIRING AND RETENTION**

52. Plaintiff repeats and realleges each and every allegation contained in the preceding paragraphs as if fully set forth herein, and he further alleges as follows.

53. DEFENDANT New York City are liable to Plaintiff because of its intentional, deliberately indifferent, careless, reckless, and/or negligent failure to adequately hire, train, supervise, retain and discipline its agents and/or employees employed by the New York City Police Department with regard to the duties described above.

54. The misconduct by DEFENDANTS Grant and Olsen described above and below, in particular evidences the failure to adequately hire, train, supervise, retain and discipline the Department's officers.

55. Consequently, DEFENDANT City of New York are liable to Plaintiff for damages.

**FIFTH CAUSE OF ACTION:
NEGLIGENT AND INTENTIONAL INFLICTION OF EMOTIONAL DISTRESS**

56. Plaintiff repeats and realleges each and every allegation contained in the preceding paragraphs as if fully set forth herein, and he further alleges as follows.

57. The DEFENDANT, THE CITY OF NEW YORK, including but not limited to POLICE OFFICERS GRANT AND OLSEN, acted intentionally, recklessly, and with utter disregard to the consequences of their actions and caused severe emotional distress to Plaintiff through their actions.

58. Such actions exceeded all reasonable bounds of decency, were outrageous and shocking and resulting in severe emotional distress to Plaintiff.

59. That as a result of said intentional and negligent acts, the Plaintiff received serious injuries in diverse parts of his person and suffered great physical pain, distress, mental shock, mental anguish, and psychological trauma and was otherwise injured.

60. By reason of the foregoing, DEFENDANTS are liable to Plaintiff for damages.

**SIXTH CLAIM CAUSE OF ACTION:
VIOLATIONS OF THE RIGHT TO A FAIR PROSECUTION AND DUE
PROCESS OF LAW UNDER 42 U.S.C 1983**

61. Plaintiff repeats, reiterates, and re-alleges each and every allegation contained in the above paragraphs with the same force and effect as if fully set forth herein.

62. That DEFENDANT GRANT falsely informed the Kings County District Attorney's Office ("KCDA") that he saw Plaintiff ride into the gas station without a license plate.

63. That DEFENDANT GRANT falsely stated under penalty of perjury, and then forward this information to the KCDA, that he asked for Mr. Joliver's registration prior to arresting him. This claim was to give the misleading and false impression that DEFENDANT conducted a lawful traffic stop and subsequent arrest, which could not be further from the truth.

64. That DEFENDANT GRANT falsely stated under penalty of perjury and then forwarded this information to the KCDA, that Plaintiff refused to be placed in handcuffs and resisted arrest. This claim was made to give the misleading and false impression that the assault and battery, as well as the excessive force utilized by DEFENDANT GRANT AND OLSEN was legally justified.

65. That DEFENDANT GRANT falsely stated that Plaintiff informed him that he recognized the gun. This claim was made to bolster the false statements by made DEFENDANT to indicate that he did, indeed, recover a weapon at 586 Conduit Boulevard.

66. That, DEFENDANT GRANT, falsely stated under penalty of perjury, and then forwarded this information to the KCDA, that he recovered a weapon, namely a gun, at 586 Conduit Boulevard.

67. That the aforementioned statements by the DEFENDANT, and actions by the DEFENDANT, consisted of fabricated and falsified information was utilized and relied upon by the Kings County District Attorney's Office.

68. Furthermore, DEFENDANTS failed to timely disclose material favorable to the defense in contravention of Brady v. Maryland, 373 U.S. 83 (1963), Giglio v. United States, 405 U.S. 150 (1972), and their progeny.

69. The Individual DEFENDANTS acting individually and in concert and conspiracy, deliberately, and recklessly.

70. At all times DEFENDANTS were acting within their scope of their employment with the DEFENDANT, THE CITY OF NEW YORK, at the aforesaid location.

71. That this information caused Plaintiff to be denied his liberty and right to a fair prosecution in violation of fourth, fifth, sixth, and fourteenth amendments of the United States Constitution.

**SEVENTH CAUSE OF ACTION:
ASSAULT AND BATTERY UNDER NEW YORK STATE LAW**

72. Plaintiff repeats, reiterates, and re-alleges each and every allegation contained in the above paragraphs with the same force and effect as if fully set forth herein.

73. That, on April 26, 2018, DEFENDANTS GRANT and OLSEN, who were acting within the scope of their employment with the DEFENDANT, THE CITY OF NEW YORK, at the aforesaid location.

74. That, on April 26, 2018, DEFENDANTS committed an assault and battery knowingly, intentionally, and willfully.

75. That, on April 26, 2018, DEFENDANTS who committed the aforementioned assault and battery upon the Plaintiff, SERGE JOLIVERT, were acting within the scope of their employment with the DEFENDANT, THE CITY OF NEW YORK.

76. That, on April 26, 2018, the assault and battery on the Plaintiff was without probable cause and was not the result of an appropriate arrest.

77. By reason of the foregoing, DEFENDANTS are liable to Plaintiff for damages.

**EIGHTH CAUSE OF ACTION:
EXCESSIVE FORCE UNDER FEDERAL LAW**

78. Plaintiff repeats, reiterates, and re-alleges each and every allegation contained in the above paragraphs with the same force and effect as if fully set forth herein.

79. In detaining Plaintiff, DEFENDANTS used force.

80. The force used was unreasonable and excessive.

81. As a result of the unreasonable and excessive force, Plaintiff suffered injuries and substantial pain.

82. DEFENDANTS' use of force was a substantial factor in causing the harm to Plaintiff.

83. As a result of the foregoing, Plaintiff was caused to suffer physical, psychological and emotional injuries, violation of his civil rights, emotional distress, anguish, anxiety, fear, humiliation, and loss of freedom.

**NINTH CAUSE OF ACTION:
VIOLATIONS OF THE NEW YORK STATE CONSTITUTION**

84. Plaintiff repeats and realleges each allegation contained in the preceding paragraphs as if fully set forth herein.

85. By virtue of the aforementioned acts, the Individual DEFENDANTS are liable to Plaintiff for violating his right to due process under Article I, § 6 of the New York State Constitution, and his right to be free of unreasonable and unlawful searches and seizures under Article I, § 12 of the New York State Constitution.

86. DEFENDANT THE CITY OF NEW YORK and the New York City Police Department are liable for these violations of the New York State Constitution under the principle of respondeat superior.

DAMAGES

87. As a direct and proximate cause of DEFENDANTS' actions and inactions, Plaintiff was deprived of his civil rights under the Fourth, Fifth, Sixth, and Fourteen Amendments of the United States Constitution and under the laws of New York.

88. This action seeks damages from on or prior to April 26, 2018 through the present.

89. The unlawful, intentional, willful, deliberately indifferent, reckless, negligent, wanton and/or bad-faith acts and omissions of DEFENDANTS caused Plaintiff to be forced to be maliciously prosecuted, deprived of liberty, deprived of relevant and exculpatory evidence, and subjected to illegal searches.

90. Such acts and omissions of DEFENDANTS caused the following injuries and damages to Plaintiff which were foreseeable to DEFENDANTS at the time of the acts and omissions and which continue to date and will continue into the future: susceptibility to physical assaults and batteries and physical assault and batteries, physical injuries, pain and suffering, mental anguish, emotional distress, psychological damage, loss of liberty, loss of relationships, loss of family, loss of companionship, loss of consortium, loss of guidance, loss of emotional and psychological development, humiliation, embarrassment, and degradation.

91. Such acts and omissions of DEFENDANTS entitle Plaintiff to compensatory and punitive damages.

WHEREFORE, Plaintiff demands the following relief jointly and severally against all of the DEFENDANTS:

- a. Compensatory damages;
- b. Punitive damages;
- c. The convening and empaneling of a jury to consider the merits of the claims herein;
- d. Costs and interest and attorney's fees;
- e. Such other and further relief as this court may deem appropriate and equitable.

Dated: New York, New York
May 8, 2019

Yours, etc.

Lord & Schewel PLLC



Masai I. Lord
Attorneys for Plaintiff
SERGE JOLIVERT
233 Broadway, Suite 2220
New York, NY 10279
718-701-1002

ATTORNEY'S VERIFICATION

MASAI I. LORD, an attorney duly admitted to practice before the Courts of the State of New York, affirms the following to be true under the penalties of perjury:

I am an attorney at LORD & SCHEWEL PLLC, attorneys of record for Plaintiff SERGE JOLIVERT. I have read the annexed SUMMONS and COMPLAINT and know the contents thereof, and the same are true to my knowledge, except those matters therein which are stated to be alleged upon information and belief, and as to those matters I believe them to be true. My belief, as to those matters therein not stated upon knowledge, is based upon facts, records, and other pertinent information contained in my files.

This verification is made by me because Plaintiff are not presently in the county wherein I maintain my offices.

DATED: New York, New York
May 8, 2019



MASAI I. LORD
Counsel for Plaintiff